TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 24, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall.
Staff: Kara Browder, David Pagliarini, James Ward, Jane Yager-Baumrind, Lynnette Lynes

Mr. Wood called the meeting to order at 6:05 pm.

1. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

2. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor

3. Public Comment
4. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

5. Explanation of Procedures
6. Administration of Oath

Mr. Wood reviewed the procedures and administered the oath to those speaking.

7. Business

A. Case V-05-25, 415 Bayview Drive, TMS# 517-06-00-041, Request for relief from §156.111(A)(3-5) to allow the construction of a detached accessory structure that exceeds the maximum height and building footprint requirements.

Ms. Browder reviewed staff comments with the Board.

- Mr. Ross Ritchie, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings the applicant meets all four criteria in that there are extraordinary conditions as it must be elevated due to low lying property, it will unreasonably restrict the use of the property, and will not be a detriment to the neighborhood. Ms. Stevens seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.*

B. Case S-01-25, 0 George Browder Boulevard, TMS# 598-00-00-473, Request for special exception to allow the use of a gas station on an Area-Wide business zoned parcel.

- Ms. Browder reviewed staff comments with the Board.

- Ms. Sara Hamlin, Foresite Group, Mr. Daniel Ben-Yisrael, reviewed the request with the Board.

- Mr. Charlie Carmody, representative for the owner, stated that there is no residential nearby and suggested that this is a perfect location for the development.

- Mr. Rogers Hook, Associate Pastor of LifePark, stated that their church is located adjacent to the property and asked that this be deferred in order to review the request.

- Mr. Ben-Yisrael noted that the zoning change could change DRB review and also pose a delay in approvals and able to receive a building permit prior to the new zoning code coming into effect.

- Mr. Wood closed public comment.

- Mr. Wood re-opened public comment and asked if a traffic impact assessment was required. Mr. Daniel and Ms. Hamlin answered that typically a traffic assessment is needed and planned for during the approval process. He noted that the adjacent church typically operates during their non-peak hours, so the conflict would be minimal. He stated that staff would determine if a traffic impact assessment would be required, the scope of the traffic assessment. He stated that once completed, staff would determine what mitigation measures would be required.

- Mr. Wood closed public comment.

- *Ms. Hall moved for approval based on the findings that the applicant has met the test for a special exception. Mr. Butner seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Barrow, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Branch opposed.*

C. Case A-02-25, 665 Ellis Street, TMS# 532-02-00-009, Appeal of Zoning Official's denial of renewal of the property's short term rental permit on the basis of §156.341(B)(1)(n) requiring short-term rental properties to be rented for a minimum of 24 nights and four separate bookings. Staff Communications

- Ms. Browder reviewed staff comments with the Board.

- Ms. Brook Katzman, agent for owner, reviewed the request with the Board.

- Mr. Wood closed public comment.

- *Ms. Hall moved to uphold the Zoning Administrator's decision for denial of a short-term rental permit based on the testimony from the applicant that the subsequent two rentals were booked and paid for after the denial was given. Mr. Barrow seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 7:24 pm.

Submitted by,
L. Lynes
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